Portland Public School District 1st Reading

DATE OF FIRST READING: March 18, 2025

PUBLIC COMMENT FOR Revision of Policy 1.20.010-P: Board of Education

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The Portland Public School District is providing Notice of Proposed Revised Policy and Public Comment to offer interested parties reasonable opportunity to submit data or comments on the proposed policies noted below.

Public comment may be submitted in writing directly to the district or through the district website noted below. Written comments must be submitted by 5:00pm on the Last Date for Comment listed below.

Open for Comment until at least: April 8th, 2025

Summary: **Board of Education 1.20.010**

1st Reading by: **Director Julia Brim-Edwards**
Portland Public School Board, Policy Committee Chair

Recommended for a 1st Reading by:
Portland Public Schools Board of Education
Policy Committee

Draft Policy Web Site: http://www.pps.net/draftpolicies

Contact: **Rosanne Powell,** Senior Board Manager
Address: P.O. Box 3107, Portland, OR 97208-3107
Telephone: 503-916-3741
E-mail: schoolboard@pps.net

Draft Policy Comment Form: https://forms.gle/VqYbmVA36qqADj6n6

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PORTLAND PUBLIC SCHOOLS
Office of General Counsel
501 North Dixon Street / Portland, OR 97227
Telephone: (503) 916-2000
Mailing Address: P. O. Box 3107 / 97208-3107

STAFF REPORT

Date: March 6, 2025

To: PPS Board of Education

From: Liz Large, Contracted Senior Legal Advisor

CC: Dr. Kimberlee Armstrong, Superintendent
Sharon Toncray, Interim General Counsel

Subject: Board of Education Policy–1.20.010-P

BACKGROUND

In planning the process for the vacancy created by Director Scott's resignation, the District discovered that Policy 1.20.020-P contained language that did not align with the state statute governing the same process, ORS 332.030. (The vacancy was filled in compliance with state law.) The proposed policy revision deletes the part of the policy that conflicts with state law: "If no eligible zone resident declares an interest in the vacant position, the Board shall appoint an eligible resident from the district at large."

FISCAL IMPACT

There is no predictable fiscal impact.

COMMUNITY ENGAGEMENT (IF APPLICABLE)

The Policy Committee did not receive public comment on the policy.

STAFF RECOMMENDATION

Staff recommends that the policy be approved by the Board.

ATTACHMENTS
A. Board of Education 1.20.010-P

Board Policy 1.20.010-P

Board of Education

I. Composition/Elections

(1) The Board of Portland public school district No. 1 Multnomah County, Oregon, shall consist of seven (7) school board members, nominated by zone and elected at large in accordance with the elections laws of the State of Oregon. Elections shall take place in each odd-numbered year on the third Tuesday in May.

II. Eligibility

(1) To be eligible for a position on the Board of the Portland public school district No. 1 Multnomah County, a person must at the time of their election:

(a) Be a citizen of the United States and of Oregon;

(b) Have been a resident of the district for a period of one (1) year immediately preceding their election; and,

(c) Be a registered voter and a resident of the respective zone to which they seek nomination or appointment.

(2) No person who is an employee of the district is eligible to serve as a board member while so employed.

III. Term

(1) Each Board member shall serve for a term of four (4) years; three shall be elected at one biennial election and four in the subsequent biennial election, except where additional vacancies of Board positions occur because of temporary appointments. The term of office of regularly elected board members shall begin on July 1 next following the election.

(2) In the event of a Board vacancy, the position shall be filled by majority vote of the remaining members of the Board.

(3) The Board member so designated shall meet the eligibility requirements of ORS 332.018 and reside in the zone in which the vacancy occurs. The Board shall advertise for a 20-day period in an attempt to find an eligible resident from the same zone to fill the vacancy. ~~If no eligible zone resident declares interest in the vacant position, the Board shall appoint an eligible resident from the district at large.~~ The Board member appointed shall serve until June 30 following the next regular district election, at which time his/her successor shall be elected to fill the

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remainder, if any, of the unexpired term. If the term to which the Board member was appointed expires on June 30 following the election of the successor, the successor shall be elected to a full term.

(4) In the event a majority of the Board member positions are vacant, the governing body of the Multnomah Education Service District shall fill the vacancies according to law.

V. Student Representation

1) In addition to the seven (7) Board members, there shall be one (1) student representative on the Board to provide for the efficacious representation of students.

(2) The student representative shall be entitled to all the rights, responsibilities, duties, and privileges of a Board member with the following exceptions:

(a) The student representative shall not have an official vote in Board matters, but shall be entitled to an unofficial vote recorded in the minutes.

(b) The student representative shall not be involved in, have an unofficial vote on, or receive materials pertaining to personnel or legal matters except as designated by the Board.

(c) The student representative shall not participate in or attend executive sessions without the consent of the Board.

(d) The student representative shall not be held responsible for representing constituencies aside from the district student body.

(3) The student representative shall be a student regularly attending a district high school in grades ten (10) through twelve (12).

(4) The student representative shall serve on the Board for a period of one (1) year.

V. Election of Board Chair and Vice Chair

(1) The Board shall elect one of its members as Board chair and one of its members as Board vice chair. The Board shall elect by majority vote the chair and vice chair at such times and for such periods as follows:

(a) At the first regular meeting in January for the period from such election until the election of the succeeding chair or vice chair, as the case may be, at the first regular meeting in the succeeding July;

(b) At the first regular meeting in July for the period from such election until the election of the succeeding chair or vice chair, as the case may be, at the first regular meeting in the succeeding January.

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(2) The Board may, for any reason it deems adequate, elect any members to serve as chair and vice chair; provided however, that in no case may a Board member serve as chair for more than four consecutive years.

Legal References: ORS 255.335; ORS 332.015; ORS 332.016; ORS 332.118; ORS 332.122; ORS 332.124; ORS 332.040; Oregon Constitution, Article II, Section 2

History: Adpt 6/71; Amd 5/21/01, BA 1878; Amd. 9/9/02; BA 2417; Amd. _____

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